

26NNCV02716 26NNCV02716

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 26NNCV02716 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 13

Date: September 11, 2026

Case No: 26NNCV02716 Trial Date: Not yet set

Case Name: Montgomery v. Blackburn, et al.

MOTION FOR LEAVE TO FILE A SAC

[CCP § 473 subd. (a)(1)]

Moving Party: Plaintiff, John Paul Montgomery

Responding Party: Defendant, Joey Blackburn [Unopposed]

RELIEF REQUESTED:

An order granting leave to file a Second Amended Complaint

CAUSES OF ACTION: from First Amended Complaint

1) Intentional Infliction of Emotional Distress

2) Civil Conspiracy

3) Cyberstalking

SUMMARY OF FACTS:

John Paul Montgomery ("Plaintiff") alleges that beginning in July 2024, he had been the target of a coordinated harassment campaign orchestrated by Leon Apel ("Apel"), a business colleague of Plaintiff. The FAC alleges that on August 2, 2024, Plaintiff's acquaintance from college and former roommate, Joey Blackburn ("Defendant") sent Plaintiff a series of unusual text messages and documents containing Plaintiff's personal information. Plaintiff alleges that Apel recruited Defendant to contact Plaintiff.

ANALYSIS:

Procedural

Proof of electronic service shall include all of the following: (1) The electronic service address and the residence or business address of the person making the electronic service; (2) the date of electronic service; (3) the name and electronic service address of the person served; and (4) a statement that the document was served electronically. (CCP, § 1013b subd. (b)(4).)

In the motion, Plaintiff states that "Plaintiff will serve these moving papers, together with the separately lodged [Proposed] Order, on Defendant Joey Blackburn through his attorney of record, James McKiernan, by electronic service to jmckiernan@mckiernanlaw.com and crowe@mckiernanlaw.com, through the Court's electronic filing service provider, and will rely on the Proof of Electronic Service generated by that provider under Code of Civil Procedure sections 1010.6 and 1013b." (Mot., p. 11:15-19.)

Plaintiff's assertion that he will serve the moving papers is not sufficient evidence that he did in fact serve the motion in the manner suggested. Plaintiff did not file proof of electronic service. If Plaintiff does not file proof of service prior to the hearing on this motion, the motion will be taken off calendar.

Substantive

The court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars. (CCP, § 473, subd. (a)(1); *Branick v. Downey Savings & Loan Association* (2006) 39 Cal.4th 235, 242.)

As judicial policy favors resolution of all disputed matters between the parties, leave to amend is generally liberally granted. (See *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) The court may deny the plaintiff's leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Ibid.*) California courts ordinarily will not consider the validity of a proposed amended pleading in ruling on a motion for leave to amend given that any grounds for a demurrer or a motion to strike will be premature at that time. (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281 [citations omitted, overruled on other grounds].)

A motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (California Rules of Court, rule 3.1324(a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (CRC, rule 3.1324 (b).)¿

Plaintiff seeks leave to file a second amended complaint to (a) add factual allegations concerning the April 15, 2026 service attempt; (b) add factual allegations regarding an April 15, 2026 email; (c) add allegations of malice; (d) delete the Third Cause of Action; (e) restate the Second Cause of Action for Civil Conspiracy; (f) delete all claims for economic, lost-income, and lost-business damages; and (g) revise the emotional-distress allegations, add state-of-mind and background language, and revise inferential allegations. (Montgomery Decl., ¶ 3.) The motion includes a copy of the proposed SAC and describes the additional allegations and their location within the pleading. (Mot., p. 6:9-21; Ex. 1.)

Plaintiff has also submitted a separate declaration specifying the effect of the amendment (Montgomery Decl., ¶ 3), why the additional allegations are necessary and proper (Montgomery Decl., ¶ 4), when the facts giving rise to the amended allegations were discovered (Montgomery Decl., ¶ 5), and why the request for amendment was not made earlier (Montgomery Decl., ¶ 6.) The Court finds that Plaintiff has complied with CRC, rule 3.1324 subdivisions (a) and (b).

Thus, pending satisfactory proof of service, the motion will be GRANTED.

RULING:

Pending proof of service, Plaintiff John Paul Montgomery's Motion for Leave to File a Second Amended Complaint is GRANTED.

The amended pleading is to be filed within 10 days of this order.

If proof of service is not filed before the hearing on this motion, the motion will be DENIED, without prejudice, and taken OFF-CALENDAR.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.